

BEFORE
THE FEDERAL MARITIME COMMISSION

DOCKET NO. 24-19

PELOTON INTERACTIVE, INC.
Complainant

vs.

FLEXPORT INTERNATIONAL LLC
Respondent

**COMPLAINANT'S SEVENTH MOTION
FOR CONFIDENTIAL TREATMENT**

Complainant Peloton Interactive, Inc. (“Peloton”), by and through its attorneys Holland & Knight LLP, hereby move pursuant to the Federal Maritime Commission’s (“FMC” or the “Commission”) May 13, 2024, Initial Order and 5(b) of the Federal Maritime Commission’s Rules of Practice and Procedure (the “Rules” or individually, “Rule”), 46 C.F.R. 502.5(b), for confidential treatment of Peloton’s Reply to Flexport International LLC’s (“Flexport”) Opposition Brief (the “Reply Brief”), Appendix, and Responses to Flexport’s Proposed Findings of Fact (“PRPFF”).

On December 13, 2024, Peloton and Flexport entered a Stipulation of Confidentiality (“Confidentiality Agreement”), which provides among other things, that “Confidential Material which is to be filed with the ALJ or Commission, or materials containing, reproducing, incorporating or otherwise disclosing Confidential Material shall be filed and labeled in accordance with 46 CFR §502.5.”

Confidentiality is required in this context because the Reply Brief and PRPFF contain documentation and deposition testimony that the parties have designated as Confidential Material. This material is similar in nature to that addressed in Complainant's Sixth Motion for Confidential Treatment, which was filed concurrently with Peloton's Initial Brief in Support of its Claims Against Flexport ("Initial Brief"), Appendix, and Proposed Findings of Fact ("PFF"). Specifically, it includes commercially sensitive information such as confidential contract terms, proprietary business information, and details identifying direct competitors and their contractual arrangements. In accordance with the Confidentiality Agreement, Peloton seeks confidential treatment for all such information within the Reply Brief and PRPFF designated as Confidential Material by the parties. Pursuant to Rule 5(b), Peloton will submit both confidential and public versions of the Reply Brief and PRPFF.

Meet and Confer Certification

On August 14, 2025, Counsel for Peloton notified Flexport of Peloton's position regarding confidential treatment of materials in its filings. In response, Flexport represented it would oppose any confidential designations it considers improper. Consistent with this established position, Peloton now seeks confidential treatment on the same basis as for its Initial Brief, Appendix, and PFF.

Conclusion

For the foregoing reasons, Peloton respectfully requests that the materials and exhibits designated as confidential in the Reply Brief and PRPFF be kept confidential and not disclosed to the public at this time.

Respectfully Submitted,

Dated: October 1, 2025

HOLLAND AND KNIGHT LLP

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on October 1, 2025, the undersigned served the attached document on counsel at the following email addresses:

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/s/ Kristine Little